

ORIGINAL

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BEFORE THE FEDERAL MARITIME COMMISSION

CASE NO 16-12

JULY-3 PM 1 46

OFFICE OF THE SECRETARY
FEDERAL MARITIME COMMISSION

PRO TRANSPORT, INC.,
PRO TRANSPORT JACKSONVILLE, INC.,
PRO TRANSPORT SAVANNAH, INC., and
PRO TRANSPORT CHARLESTON, INC.

Complainants,

vs.

SEABOARD MARTINE OF FLORIDA, INC. and
SEABOARD MARINE LTD., INC.,

Respondents.



COMPLAINT

1 Complainants, PRO TRANSPORT, INC., PRO TRANSPORT JACKSONVILLE, INC., PRO TRANSPORT SAVANNAH, INC. and PRO TRANSPORT CHARLESTON, INC. (herein "Pro Transport") are Florida corporations with their principal place of business located at 10800 N W South River Drive, Miami, Miami-Dade County, Florida 33178. Plaintiffs are motor carriers that provide transportation and transportation services, primarily to and from commercial ports along the southeastern seaboard of the United States.

2 Respondents, SEABOARD MARINE OF FLORIDA, INC. and SEABOARD MARINE LTD., INC. (herein "Seaboard"), are corporations with their principal place of business located at 8001 N W 79th Avenue, Miami, Miami-Dade County, Florida 33166. At all times relevant hereto, Seaboard acted as an ocean common carrier, a marine terminal operator, and/or as an agent for an ocean common carrier

3 Seaboard has violated Section 10(b)(10), Section 10(d)(3) and Section 10(d)(4) of the Shipping Act of 1984 (as modified by the Ocean Shipping Reform Act of 1998, 46 U.S.C. § 41104(10) and 46 U.S.C. § 41106(2-3)) Accordingly, the Federal Maritime Commission has jurisdiction over this dispute.

4 Among other things, Pro Transport acts as a motor carrier for its customers in the transportation of cargo off loaded from and loaded on ocean carriers at the Port of Miami-Dade, Port Everglades, Port of Jacksonville, Port of Savannah, and Port of Charleston, among others, and transports cargo to its customers throughout Florida and other states.

5 Seaboard has refused to pay Pro Transport for services Pro Transport has provided to Seaboard, as reflected in the attached invoices (Composite Exhibit 1)

6 Additionally, Seaboard has unjustly terminated its relationship with Pro Transport such that Pro Transport no longer is transporting cargo for Seaboard as a customer

7 Seaboard is also refusing to cooperate with Pro Transport and its insurers to resolve outstanding insurance claims (specifically Claim numbers 77-925566 and 77-923637) for which Seaboard has an interest and whose cooperation is required to resolve these insurance claims.

8. Pro Transport is also concerned that Seaboard may unjustly terminate Pro Transport's access to its terminal operation at the Port of Miami-Dade thus denying Pro Transport the ability to collect and transport cargo for other customers.

9 Upon information and belief, Maritere Martinez (herein "Ms. Martinez"), the vice-president of specialized services for Seaboard, is responsible in whole or in part with other actors employed by Seaboard, for each of the actions described in Paragraph 5

through Paragraph 8 because of a personal bias against Pro Transport. Upon information and belief, Ms. Martinez has engaged in obscenity laced tirades in front of representatives of Pro Transport, Seaboard, and third-parties during which she has falsely accused Pro Transport of excessive charges. Upon information and belief, Ms. Martinez has further disseminated slanderous accusations against Pro Transport orally and via email and text messaging within Seaboard and to third parties.

10 Pro Transport has assiduously attempted to seek the payment that owed by Seaboard, and to further resolve all other issues with Seaboard, but Seaboard has unreasonably refused to deal or negotiate with Pro Transport and has further exercised undue and unreasonable prejudice and disadvantage against Pro Transport.

11 By reason of the facts stated in the foregoing paragraphs, Pro Transport has been and is being subject to injury as direct violations by Seaboard of Section 10(b)(10), Section 10(d)(3) and Section 10(d)(4) of the Shipping Act of 1984, as amended, 46 U.S.C. § 41104(10) and 46 U.S.C. § 41106(2-3))

12. Pro Transport has been injured by Seaboard's refusal to deal or negotiate and by Seaboard's exercise of undue and unreasonable prejudice and disadvantage against Pro Transport. Pro Transport is owed \$188,005 78, not including interest, as reflected in the unpaid invoices attached as Exhibit 1 Pro Transport has been further damaged by Seaboard's violations, in an amount that has not yet been determined.

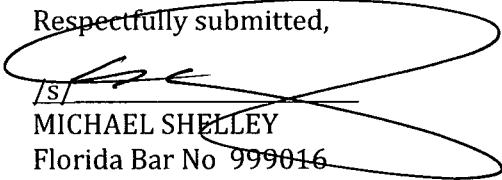
13 Pro Transport requests that any hearings be held in Miami, Florida.

Pro Transport prays that Seaboard be required to answer the charges herein, that after due hearing, an order be made commanding said respondents (and each of them) to cease and desist from the aforesaid violations of said Act; to establish and put in force such

practices as the Commission determines to be lawful and reasonable; to pay to said Complainants by way of reparations for the unlawful conduct an amount the Commission may determine to be proper as an award, with interest and attorney's fees and costs, and that such other and further order or orders by made as the Commission determines to be proper in the premises.

DATED this 2nd day of May, 2016.

Respectfully submitted,

/s/ 

MICHAEL SHELLEY

Florida Bar No 999016

THE SHELLEY LAW FIRM, LLC

Mailing: 1521 Alton Road #870
Miami Beach, FL 33139

Email Michael@shelleylawfirm.com

Tel 305-798-5522

VERIFICATION

Oscar Acharandio is the person who signed the foregoing complaint; that he has read the complaint and that the facts stated therein, upon information known and received from others, Affiant believes to be true

Subscribed and sworn before me, a notary public in and for the State of FL, County of DADE, this 2 day of May, 2016

Notary Public: 

My Commission Expires. 03/08/2018



PRO TRANSPORT INC
PO BOX 821700 PEMBROKE PINES, FL 33082
Phone: (305) 884-4186 Fax: (305) 884-6254

STATEMENT OF ACCOUNT

As of 4/11/2016

Customer: SEABOARD MARINE LTD
 8001 NW 79TH AVE
 ATTN INTERMODAL DEPT
 MIAMI, FL 33166

Contact: MARIA ROMERO / CLARA MATEUS
 (305) 530-1110
 (305) 530-2299
 (305) 530-1110
 (305) 530-2299

Invoice #	Date	Reference	Total	Aging	Balance	Receipt #	Check #	Date	Applied
83980	01/05/2016	4224934	1,113.60	91 120	1 113.60				
84069	01/05/2016	FIRST COAST DEPO	954.44	91 120	954.44				
84113	01/06/2016	4282686	515.04	91 120	515.04				
84130	01/06/2016	FIRST COAST DEPO	3,817.76	91 120	3,817.76				
84238	01/07/2016	4282686	867.22	91 120	867.22				
84248	01/07/2016	FIRST COAST DEPO	2,390.22	91 120	2,390.22				
84323	01/08/2016	FIRST COAST DEPO	1,913.00	91 120	1,913.00				
84324	01/08/2016	VSC4334033A	98.35	91 120	98.35				
84405	01/15/2016	4333635	503.90	61-90	503.90				
84416	01/15/2016	FIRST COAST DEPO	15,748.26	61-90	15,748.26				
84501	01/20/2016	4333500	1 435.16	61-90	1 435.16				
84502	01/20/2016	4336889	75.00	61-90	75.00				
84503	01/20/2016	4338307	519.22	61-90	519.22				
84504	01/20/2016	4338986	1,015.99	61-90	1,015.99				
84505	01/20/2016	4346712	1,519.89	61-90	1,519.89				
84506	01/20/2016	4346743	1 444.89	61-90	1 444.89				
84507	01/20/2016	FIRST COAST DEPO	6,203.86	61-90	6,203.86				
84551	01/25/2016	4305568	389.00	61-90	389.00				
84576	01/28/2016	4318081	1,003.46	61-90	1,003.46				
84577	01/28/2016	4327595	1,011.52	61-90	1,011.52				
84578	01/28/2016	4331451	1,105.08	61-90	1 105.08				
84579	01/28/2016	4333635	1,015.99	61-90	1,015.99				
84580	01/28/2016	SB LOADS	569.22	61-90	569.22				
84581	01/28/2016	4340964	517.82	61-90	517.82				
84582	01/28/2016	BUNDLE	687.65	61-90	687.65				

Aging	Current	31 to 60	61 to 90	91 to 120	Over 120	Total
	\$ 0.00	\$ 0.00	\$ 34,765.91	\$ 11,669.63	\$ 0.00	\$ 46,435.54

PROTRANSPORT JACKSONVILLE INC

PO BOX 821700 PEMBROKE PINES, FL 33082

Phone: (904) 899-0007 Fax: (904) 900-2099

STATEMENT OF ACCOUNT

As of 4/11/2016

Customer: SEABOARD MARINE LTD

1630 PORT BLVD

MIAMI, FL 33132

Contact: ANDRES ABREU/MARIA ROMERO

(305) 863-4444

(305) 863-4624

(305) 530-1110

(305) 530-2299

Invoice #	Date	Reference	Total	Aging	Balance	Receipt #	Check #	Date	Applied
32861	07/02/2015	MIA4130616A	2,674.00	>120	2,674.00				
33279	08/04/2015	CAN4173145A	220.96	>120	220.96				
33367	08/11/2015	MIA4161926A002	765.00	>120	765.00				
34007	09/25/2015	CAN4208361A	149.00	>120	149.00				
34009	09/25/2015	MIA4204068A	722.16	>120	722.16				
34010	09/25/2015	MIA4208440A	2,483.90	>120	2,483.90				
34011	09/25/2015	MIA4217829A	1,860.25	>120	1,860.25				
34012	09/25/2015	MIA4222389A	218.06	>120	218.06				
34013	09/25/2015	MIA4222493A	1 162.30	>120	1 162.30				
34014	09/25/2015	MIA4231602A	807 12	>120	807 12				
34015	09/25/2015	MIA4233447A	392.35	>120	392.35				
34015	10/08/2015	MIA4233447A	8.85	>120	8.85				
34016	09/25/2015	MIA4208807A	759.52	>120	759.52				
34017	09/25/2015	MIA4232862A	197 75	>120	197 75				
34018	09/25/2015	MIA4232862A	698.56	>120	698.56				
34122	10/12/2015	CHI4230205A	100.00	>120	100.00				
34159	10/06/2015	MIA4245185A	419 14	>120	419.14				
34180	10/09/2015	MIA4222494A	1,227.30	>120	1 162.30				
34317	10/20/2015	MIA4254444A	587.05	>120	587.05				
34318	10/20/2015	MIA4254763A	1,298.00	>120	1,298.00				
34319	10/20/2015	MIA4255468A	1,298.00	>120	1,298.00				
34320	10/20/2015	MIA4255873A	2,095.68	>120	2,095.68				
34321	10/20/2015	MIA4255883A	1,298.00	>120	1,298.00				
34322	10/20/2015	MIA4256114A	807 12	>120	807 12				
34323	10/20/2015	MIA4258721A	401.20	>120	401.20				
34324	10/20/2015	MIA4260081A	710.84	>120	710.84				
34325	10/20/2015	MIA4260082A	710.84	>120	710.84				
34326	10/20/2015	MIA4260587A	1,397 12	>120	1,397 12				
34684	11/20/2015	MIA4285076A	1,206.43	>120	1,206.43				
34824	11/27/2015	MIA4291693A	1,706.00	>120	1,706.00				
34861	12/02/2015	CHI4304469A	1,226.60	>120	200.00	8875	W/T12/18/2015	12/18/2015	1,026.60
34939	12/09/2015	MIA4227143A	65.00	>120	65.00				
35138	01/04/2016	MIA4326452A	2,859.04	91 120	2,859.04				
35221	01/05/2016	ATL4333111A	1,576.90	91 120	1,576.90				
35222	01/05/2016	MIA4312262A	1,218.00	91 120	1,218.00				

PROTRANSPORT JACKSONVILLE INC

PO BOX 821700 PEMBROKE PINES, FL 33082

Phone: (904) 899-0007 Fax: (904) 900-2099

STATEMENT OF ACCOUNT

As of 4/11/2016

Customer: SEABOARD MARINE LTD
1630 PORT BLVD

MIAMI, FL 33132

Contact: ANDRES ABREU/MARIA ROMERO
(305) 863-4444
(305) 863-4624
(305) 530-1110
(305) 530-2299

Invoice #	Date	Reference	Total	Aging	Balance	Receipt #	Check #	Date	Applied
35223	01/05/2016	MIA4315461A	1,328.50	91 120	1,328.50				
35225	01/05/2016	MIA43377104A	503.68	91 120	503.68				
35226	01/05/2016	MIA4340571A	1,276.00	91 120	1,276.00				
35227	01/05/2016	MIA4269113A	1,895.02	91 120	1,895.02				
35228	01/05/2016	CHI4305322A	613.30	91 120	613.30				
35229	01/05/2016	MIA4295403A	3,063.84	91 120	3,063.84				
35230	01/05/2016	MIA4300200A	1,019.52	91 120	1,019.52				
35231	01/05/2016	MIA4282679A	2,919.14	91 120	2,919.14				
35232	01/05/2016	MIA4309730A	3,861.14	91 120	3,861.14				
35233	01/05/2016	MIA4298761A	1,019.52	91 120	1,019.52				
35234	01/05/2016	MIA4305406A	3,063.84	91 120	3,063.84				
35235	01/05/2016	MIA4316252A	834.73	91 120	834.73				
35236	01/05/2016	CHI4316375A	1,209.20	91 120	1,209.20				
35237	01/05/2016	MIA4292504A	1,995.02	91 120	1,995.02				
35238	01/05/2016	MIA4323205A	1,456.27	91 120	1,456.27				
35239	01/05/2016	CHI4324758A	1,103.71	91 120	1,103.71				
35240	01/05/2016	MIA4303357A	1,983.30	91 120	1,983.30				
35241	01/05/2016	MIA4307582A	5,464.00	91 120	5,464.00				
35242	01/05/2016	MIA4319441A	1,288.46	91 120	1,288.46				
35244	01/05/2016	MIA4326242A	4,422.60	91 120	4,422.60				
35246	01/06/2016	MIA4320949A	3,673.15	91 120	3,673.15				
35247	01/06/2016	MIA4330873A	1,128.81	91 120	1,128.81				
35248	01/06/2016	MIA4331455A	1,182.16	91 120	1,182.16				
35249	01/06/2016	MIA4335793A	1,300.00	91 120	1,300.00				
35250	01/06/2016	CHI4324821A	2,180.60	91 120	2,180.60				
35251	01/06/2016	MIA4303420A	889.43	91 120	889.43				
35252	01/06/2016	MIA4303439A	989.90	91 120	989.90				
35253	01/06/2016	MIA4331765A	1,521.48	91 120	1,521.48				
35254	01/06/2016	MIA4333762A	1,173.98	91 120	1,173.98				
35371	01/15/2016	MIA4303441A	1,979.80	61-90	1,979.80				
35372	01/15/2016	MIA4328524A	898.56	61-90	898.56				
35373	01/15/2016	MIA4330784A	1,479.46	61-90	1,479.46				
35374	01/15/2016	MIA4332309A	2,613.72	61-90	2,613.72				
35486	01/29/2016	CHI4316375A	983.24	61-90	954.44				
35487	01/29/2016	MIA4331313A	8,717.00	61-90	8,717.00				

PROTRANSPORT JACKSONVILLE INC

PO BOX 821700 PEMBROKE PINES, FL 33082

Phone: (904) 899-0007 Fax: (904) 900-2099

STATEMENT OF ACCOUNT

As of 4/11/2016

Customer: SEABOARD MARINE LTD

1630 PORT BLVD

MIAMI, FL 33132

Contact: ANDRES ABREU/MARIA ROMERO

(305) 863-4444

(305) 863-4624

(305) 530-1110

(305) 530-2299

Invoice #	Date	Reference	Total	Aging	Balance	Receipt #	Check #	Date	Applied
35488	01/29/2016	MIA4332825A	1,461.60	61-90	1 461.60				
35489	01/29/2016	MIA4336790A	709.92	61-90	709.92				
35490	01/29/2016	MIA4337710A	3,525.76	61-90	3,525.76				
35491	01/29/2016	MIA4341194A	3,022.08	61-90	3,022.08				
35492	01/29/2016	MIA4344677A	3,022.08	61-90	3,022.08				
35493	01/29/2016	MIA4346313A	907.36	61-90	907.36				
35494	01/29/2016	MIA4349208A	1,753.22	61-90	1,753.22				
35588	02/03/2016	MIA4331765AA	503.68	61-90	503.68				

Aging	Current	31 to 60	61 to 90	91 to 120	Over 120	Total
	\$ 0.00	\$ 0.00	\$ 31,548.68	\$ 60,014.24	\$ 28,582.50	\$ 120,145.42

PRO TRANSPORT SAVANNAH INC
PO BOX 821700 PEMBROKE PINES, FL 33082
Phone: (912) 944-4445 Fax: (912) 944-4406

STATEMENT OF ACCOUNT

As of 4/11/2016

Customer: SEABOARD MARINE LTD
 1630 PORT BLVD

 MIAMI, FL 33132

Contact: MARIA ROMERO
 (305) 530-1110
 (305) 530-2229
 (305) 530-1110
 (305) 530-2229

Invoice #	Date	Reference	Total	Aging	Balance	Receipt #	Check #	Date	Applied
12655	07/31/2015	MIA4155453A	1,243.75	>120	1,243.75				
12757	08/07/2015	MIA4155500A	955.00	>120	955.00				
12897	08/18/2015	4156297A	1,195.00	>120	1 195.00				
12898	08/18/2015	CHI4162005A	1,875.63	>120	1,875.63				
12971	08/28/2015	MIA4179655	493.68	>120	493.68				
13073	09/04/2015	GLDU7083353	740.00	>120	740.00				
13074	09/04/2015	MIA402604A	1 176.74	>120	1 176.74				
13075	09/04/2015	MIA4179607A	522.54	>120	522.54				
13076	09/04/2015	MIA4180347A	1,513.62	>120	1,513.62				
13077	09/04/2015	MIA4187046A	1 149.50	>120	1 149.50				
13078	09/04/2015	MIA4189512A	435.60	>120	435.60				
13079	09/04/2015	MIA4190451A	1,645.56	>120	1,645.56				
14582	01/04/2016	MIA4333762	692.64	91 120	692.64				
15020	02/03/2016		668.16	61-90	668.16				

Aging	Current	31 to 60	61 to 90	91 to 120	Over 120	Total
	\$ 0.00	\$ 0.00	\$ 668.16	\$ 692.64	\$ 12,946.62	\$ 14,307.42

PRO TRANSPORT CHARLESTON INC

PO BOX 821700 PEMBROKE PINES, FL 33082

Phone: (843) 225-4211 Fax: (843) 225-4215

STATEMENT OF ACCOUNT

As of 4/11/2016

Customer: SEABOARD MARINE LTD
ATTN INTERMODAL DEPT
8001 NW 79TH AVENUE
MIAMI, FL 33166

Contact:
(305) 530-1110
(305) 530-2299
(305) 530-1110
(305) 530-2299

Invoice #	Date	Reference	Total	Aging	Balance	Receipt #	Check #	Date	Applied
32938	12/22/2015	MIA4324745A	716.04	91 120	716.04				
32970	01/04/2016	MIA4339157	692.64	91 120	692.64				
33028	01/11/2016	4285546B006	709.92	91 120	709.92				
33153	01/28/2016	MIA4343593	850.14	61-90	850.14				
33177	02/03/2016	MIA4334664A	882.30	61-90	882.30				

Aging	Current	31 to 60	61 to 90	91 to 120	Over 120	Total
	\$ 0.00	\$ 0.00	\$ 1,732.44	\$ 2,118.60	\$ 0.00	\$ 3,851.04

PRO TRANSPORT INC
PO BOX 821700 PEMBROKE PINES, FL 33082
Phone: (305) 884-4186 Fax: (305) 884-6254

STATEMENT OF ACCOUNT

As of 4/11/2016

Customer: SEABOARD MARINE/REPAIRS
ATEN JUAN RODRIGUEZ
1630 PORT BLVD
MIAMI, FL 33132

Contact:
()
()
(305) 530-1110
(305) 530-2229

Invoice #	Date	Reference	Total	Aging	Balance	Receipt #	Check #	Date	Applied
81955	09/17/2015	4220309	850.00	>120	850.00				
81958	09/17/2015	MIA4194676	440.75	>120	440.75				
82740	10/30/2015	4273347	508.80	>120	508.80				
83649	12/18/2015	4292626	404.70	91 120	404.70				
84329	01/08/2016	4340760	612.37	91 120	612.37				
84332	01/12/2016	CHI4324814A	449.34	61-90	449.34				

Aging	Current	31 to 60	61 to 90	91 to 120	Over 120	Total
	\$ 0.00	\$ 0.00	\$ 449.34	\$ 1,017.07	\$ 1,799.55	\$ 3,265.96